

**DEPARTMENT SEVEN
JUDGE TIM P. KAM
707-207-7307
TENTATIVE RULINGS SCHEDULED FOR
TUESDAY, SEPTEMBER 15, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30 p.m.

**BANK OF AMERICA, N.A. vs. DERRICK L. TURNER; ET AL.
Case No. CL25-04331**

Motion filed by Plaintiff for Judgment on the Pleadings

TENTATIVE RULING

Plaintiff's motion for judgment on the pleadings is denied. Defendant's statement in his Answer that, "Bank of America failed to fulfill its end of the bargain" is a sufficient denial of the essential element of the Plaintiff's performance for a breach of contract action. (*Oasis W. Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.)

**JANE DOE #1 (J.C.); ET AL. vs. CITY OF FAIRFIELD; ET AL.
Case No. CU25-06196**

FSUSD's Demurrer and Motion to Strike re: First Amended Complaint

TENTATIVE RULING

THE PARTIES ARE TO APPEAR TO ADDRESS THE FOLLOWING ISSUES:

1. Whether leave to amend should be granted or not and the impact of any recent discovery.
2. The source of the citation for *Ralph v. City of New Orleans* (1972) 22 Cal.3d.1.